

Chief Justice's Court

Case :- WRIT - C No. - 25419 of 2023

Petitioner :- Rajesh Kumar Singh

Respondent :- U.P. Power Corporation Ltd. And 2 Others

Counsel for Petitioner :- Devendra Pratap Yadav, Jitendra Kumar Tripathi

Counsel for Respondent :- Chetan Chatterjee

Hon'ble Pritinker Diwaker, Chief Justice

Hon'ble Ashutosh Srivastava, J.

Sri Jitendra Kumar Tripathi, learned counsel for the petitioner and Sri Chetan Chatterjee, learned counsel for Respondent Nos.1, 2 & 3.

At the very outset, Sri Chetan Chatterjee submits that pending applications of the petitioner (Annexure No.4 to the writ petition) would be decided within three weeks. He further assured that till the application of the petitioner is decided, no coercive steps shall be taken against him.

List this case on 24.08.2023, as fresh.

Order Date :- 2.8.2023

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(Ashutosh Srivastava, J) (Pritinker Diwaker, CJ)

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On the request of Sri Chetan Chatterjee, counsel appearing for the respondent, put up this case on 19.9.2023 as fresh

Order Date:- 24.8.2023

CS/-

(Ashutosh Srivastava, J.)

(Pritinker Diwaker, C.J.)

Court No. - 3

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Counsel for Respondent :- Chetan Chatterjee

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

This writ petition has been filed with a prayer that the dues which have been asked for by the Electricity Department, be quashed as the petitioner had never got the electricity connection. It has been argued that the property on which the electricity was being claimed to be consumed, was not in the possession of the petitioner as the same has been acquired by the National Highway Authority of India.

Without going into the merits of the case, we direct that if the petitioner files an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the same shall be considered without going into the question of limitation in accordance with law and shall be decided within a period of one month from the date of presentation of the application. For a period of two months or till the application is decided, no coercive action shall be taken against the petitioner.

With these observations, the instant petition is accordingly, **disposed of.**

Order Date :- 19.9.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)